MASTER SERVICES AND IP LICENSING AGREEMENT

Between: Apex Global Software Inc. and Target Technologies LLC
Effective Date: January 15, 2024 | Document ID: MSA-2024-8849

1. RECITALS & SCOPE OF ENGAGEMENT

Target Technologies LLC ('Provider') agrees to deliver continuous proprietary infrastructure algorithms to Apex Global Software Inc. ('Client') pursuant to the performance milestones set forth herein.

2. INTELLECTUAL PROPERTY & ASSIGNMENT RISKS

Section 2.3: Provider explicitly retains all title, copyright, and patent ownership to foundational codebases. CRITICAL RESTRICTION: No intellectual property rights created under Statement of Work #4 shall transfer to Client until full payment of trailing discretionary bonus tranches ($2.4M). Prior assignments contain reversion clauses.

3. INDEMNITY & UNLIMITED LIABILITY EXPOSURE

Section 3.1: Provider's indemnification obligations for third-party intellectual property infringement claims and data breach casualties ARE ENTIRELY UNCAPPED and expressly excluded from any limitation of liability provisions. Section 3.4: Target Technologies LLC shall defend, indemnify, and hold harmless Client from any consequential losses.

4. CHANGE OF CONTROL & ASSIGNABILITY

Section 4.2: Client possesses immediate unilateral termination rights in the event Target Technologies LLC enters into any merger, acquisition, restructuring, or majority equity acquisition exceeding 35% without prior written unanimous consent delivered 60 business days in advance. Failure to obtain consent triggers an automatic $5M penalty.

5. RESTRICTIVE COVENANTS & NON-COMPETE ENFORCEABILITY

Section 5.1: Target Technologies LLC and its designated key founders are prohibited from developing, marketing, or consulting on algorithmic logistics solutions across North America and Western Europe for a duration of 36 months post-termination.

6. GOVERNING LAW & MANDATORY ARBITRATION

This agreement shall be governed by Delaware law. Any unresolved dispute exceeding $250,000 shall be submitted to binding JAMS arbitration.